TENTATIVE RULINGS

DEPT W15

JUDGE RICHARD Y. LEE

Date: June 25, 2026

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5915. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Do not call the department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling. The Court interprets a party's failure to appear at the hearing as a waiver of oral argument.

Remote Appearances: Department W15 permits non-evidentiary proceedings, including law and motion, to be conducted remotely. *If you are appearing remotely*: (1) all counsel and self-represented parties appearing for such hearings **must,** prior to 1:30 p.m. on Thursday, check-in online via the Court's civil video appearance website (link here); and (2) participants will then be prompted to join the courtroom's Zoom hearing session.

Local Rule 375(c): Attorneys **shall** comply with Local Rule 375(c) which governs "Decorum for In-Person and Remote Court Appearances." (Local Rule 375(c)) Specifically, the video and audio must be turned on and functioning during the hearing; and attorneys are expected to wear appropriate business attire.

#		
100	Novak vs. Andry, 24-01414288	MOTIONS TO COMPEL Defendant, Doran Andry ("Defendant"), moves for an order compelling Plaintiff, Hsiuyen Julie Novak ("Plaintiff"), to provide responses to (1) Defendant's Form Interrogatories, Set One, (2) Special Interrogatories, Set One, and (3) Requests for Production, Set One. Defendant also moves for an order (4) deeming matters in Defendant's Requests for Admission, Set One, admitted. In conjunction with these motions, Defendant moves for an order awarding sanctions in bringing the first three motions in the amount of $1,675.45 for each motion. For

		the fourth motion, Defendant moves for an order awarding sanctions in the amount of $1,675.45 against Plaintiff and Plaintiff's counsel, jointly and severally. As a threshold matter, Defendant recently filed a proof of service of these four motions on June 10, 2026, indicating that the motions were served on November 30, 2025, by electronic service. (ROA 137.) Here, Defendant provides evidence that on December 9, 2024, Defendant electronically served Plaintiff with Defendant's Form Interrogatories, Special Interrogatories, and Requests for Production, Set One; that extensions to provide responses were granted until March 7, 2025; that on March 15, 2025, Defendant's counsel reminded Plaintiff's counsel that objections had been waived and that these motions would be filed in no answers were received; that on November 26, 2025, Defendant's counsel again stated that these motions would be filed if answers were not provided; and that no responses to Defendant's Form Interrogatories, Special Interrogatories, and Requests for Production, Set One were ever provided. (ROA 96, 100, 102, Declaration of Paul F. Sorrentino, ¶¶ 4-20, Exs. A-F.) No opposition has been filed. As a result of Plaintiff's failure to serve responses to the interrogatories and requests for production, Plaintiff has waived any objection to the interrogatories and requests, including one based on privilege or on the protection for work product. (Code Civ. Proc. §§ 2030.290(a) [interrogatories]; 2031.300(a) [inspection demands].) Defendant's motions to compel Plaintiff's responses to Defendant's Form Interrogatories, Special Interrogatories, and Requests for Production, Set One are GRANTED. Plaintiff is ORDERED to serve verified responses to Defendant's Form Interrogatories, Special Interrogatories, and Requests for Production, Set One, without objections, within 30 days. *Requests for Admission* Defendant provides evidence that on December 9, 2024, Defendant electronically served Plaintiff with Defendant's Requests for Admission, Set One; that extensions which were granted until March 7, 2025; that on March 15, 2025, Defendant's counsel reminded Plaintiff's counsel that objections had been waived and that these motions would be filed in no answers were received; that on November 26, 2025, Defendant's counsel again stated that these motions would be filed if answers were not

provided; and that no responses to Defendant's Requests for Admission, Set One were ever received. (ROA 98, 100, 102, Declaration of Paul F. Sorrentino, ¶¶ 4-19, Exs. A-F.)

As Plaintiff has not yet served a proposed response to the Requests for Admission, Set One, at all, Defendant's motion to deem the matters in Requests for Admissions, Set One, admitted is GRANTED.

Monetary Sanctions
Defendants seeks $1,675.45 based on a hourly rate of $400 per hour for 1.5 hours to draft the motion, 1.5 hours to review any opposition and to draft a reply, and 1 hour for the hearing, in addition to a filing fee of $75.45. (ROA 96, 100, 102, Declaration of Paul F. Sorrentino, ¶¶ 21-23.)

In light of the ruling on the motions, and the lack of opposition and reply, the Court reduces the amount of sanctions to $1,200 for all three motions against Plaintiff, Hsiuyen Julie Novak to be paid within 30 days.

As for the motion to deem requests for admission admitted, the Court awards an additional hour or $400 against Plaintiff, Hsiuyen Julie Novak, and Plaintiff's counsel of record, jointly and severally, to be paid within 30 days.

Defendant to give notice.

<u>MOTION TO COMPEL FURTHER</u>
Defendant, Doran Andry ("Defendant"), moves for an order compelling Plaintiff, Hsiuyen Julie Novak ("Plaintiff"), to provide further responses to Defendant's, Requests for Production, Set Two, Nos. 53-57, and for terminating sanctions, or in the alternative, monetary sanctions in the amount of $2,575.45.

Defendant contends that Plaintiff did not produce the phones requested by Requests for Production, No. 53 following the promise under oath to do so, and that the documents produced in response to Requests for Production, Nos. 54-57 were not responsive and not code compliant. Defendant also contends that Defendant's counsel attempted to meet and confer to obtain supplemental responses but Plaintiff's counsel failed to respond to these attempts. Defendant asserts that good cause exists in this case as all objections have been waived and Plaintiff wasted the Court's and Defendant's time by serving wholly improper and inadequate responses, and refusing to respond to Defendant's meet and confer attempts. Defendant asserts that terminating sanctions are warranted as this is the sixth discovery motion that Defendant has been forced to file in this case due to Plaintiff’s utter disregard for the discovery process, including a constant refusal to communicate, meet and confer, or comply with discovery obligations, such that the Court should find that there has been multiple instances of misuse of the discovery process and impose terminating sanctions by dismissing the action of Plaintiff or striking the complaint then rendering judgment by default against Plaintiff. Defendant further asserts that, in the alternative, the Court should impose monetary sanctions against Plaintiff and her counsel in the amount of $2,575.45, and requests that the sanctions not be reduced as it is clear that the amount previously ordered failed to cause compliance.

The motion is unopposed.

Merits
On February 10, 2025, Plaintiff was electronically served with Defendant’s Requests for Production, Set Two. (Sorrentino Decl., ¶¶ 4, 16, Ex. A.) As set forth above, Plaintiff served late responses on October 25, 2025.

The requests for production are addressed in turn.

Request for Production No. 53: PRODUCE EACH of Decedent’s PHONES (which herein includes landlines, cellular phones, mobile phones, tablets, and any other device used for telephone calls, text messages, or data) for forensic analysis, the search terms and time scope to be determined through meet and confer efforts between counsel but will include at least the time frame of January 1, 2023 to August 31, 2023, and terms “drugs,” “high,” “ketamine,” “special K,” “K,” “MDMA,” “ecstasy,” “X,” “molly,” or “mandy,” “weed,” “grass,” “flower,” marijuana,” “THC,” “cannabis,” “coke,” “cocaine,” “snow,” “powder,” “meth,” “freebase,” “lit,” “drink,” “alcohol,” “buzz,” “drunk,” “fucked up,” “Doran,” “Andry,” 9495003146, and Doran Andry’s business names.
In response to Request for Production, No. 53 Plaintiff stated: “The Decedent’s cell phone is being produced as requested for examination to be conducted for the specified search terms within the period noted; accordingly, please provide the name and location of where to deliver Decedent’s cell for the prescribed forensic analysis.” Defendant’s counsel provides that Decedent’s phone was not produced as indicated as Defendant’s counsel reached out to Plaintiff’s counsel to request that Decedent’s phone be sent to Dalman Investigations, LLC for examination and provided Plaintiff and her counsel with the appropriate address, but no

response was provided and Decedent's phone was not produced. (Sorrentino Decl., ¶ 12.)

In light of this showing, the Court GRANTS Defendant's motion to compel compliance with Plaintiff's statement of compliance.

Request for Production No.54: PRODUCE a downloaded copy of Decedent's personal Facebook page. A downloaded copy of a Facebook page includes a copy of an individual's information, including photos and videos, posts on their wall, all of their messages, their friends list, and other content shared on their profile. A downloaded copy of Decedent's Facebook page can be obtained in the following way: (1) access the account from a web browser; (2) click the down arrow in the top, right corner of the Facebook page, which will display a dropdown menu; (3) click "Settings & Privacy"; (4) click "Settings"; (5) click "Download your information" from the menu on the left-side of the page; (6) select "Continue"; (7) select "Download or transfer information" from the pop-up menu; (8) select "Available information"; (9) select "Download to device"; (10) ensure the Date Range is set to "Custom" and reflects YOUR start date with SCRIPPS through the present, the Format is set to "HTML," and the Media Quality is set to "High"; and (11) click "Create files.".

Request for Production No.55: PRODUCE a downloaded copy of Decedent's personal Instagram page, A downloaded copy of an Instagram page includes a copy of an individual's information, including photos and videos, posts, all of their messages, their friends list, and other content shared on their profile. An individual can obtain a downloaded copy of an Instagram page in the following way: (1) access the account from a web browser; (2) click the menu icon on the bottom, left corner of the Instagram page, which will display a dropdown menu; (3) click "Settings"; (4) click the "Accounts Center" tab from the menu located on the left side of the page; (5) select "Your information and permissions"; (6) select "Download your information"; (7) click "Download or transfer information"; (8) select "All available information"; (19) select "Download to device"; (10) ensure the Date Range is set to "Custom" and reflects YOUR start date with SCRIPPS through the present, the Format is set to "HTML," and the Media Quality is set to "High"; and (11) click "Create files."

Request for Production No. 56: PRODUCE a downloaded copy of Decedent's personal TikTok page. A downloaded copy of a TikTok page includes a copy of an individual's information, including username information, watch

		history, comment history, and privacy settings. An individual can obtain a downloaded copy of a TikTok page in the following way: (1) access the account; (2) click menu button (three horizontal lines); (3) click "settings and privacy"; (4) click "account"; (5) click "download your data" ensuring the TXT file type is selected. Request for Production No.57: a. Request: PRODUCE a downloaded copy of Decedent's personal X (formerly Twitter) page. A downloaded copy of an X page includes a copy of an individual's information, including photos and videos, comments, profile information, messages, stories, searches, interactions with ads, and content X recommends. An individual can obtain a downloaded copy of an X page in the following way: (1) access the account; (2) click profile picture icon in top left corner; (3) click "settings and support"; (4) click "settings and privacy"; (5) click "your account"; (6) click "download an archive of your data"; (7) verify your identity; (8) click "request archive." The response to Requests for Production, Nos. 54-57 is identical. Plaintiff responded: "In compliance with this Request For Production, and after a diligent search and reasonable inquiry, all responsive documents within possession, custody, or control are produced concurrently herewith; and since discovery is continuing, the right to amend this response at a later date to incorporate later discovered responsive material to this particular request is reserved. Defendant provides that Plaintiff's production was non-compliant, non-responsive, and/or incomplete. Defendant's counsel provides that Plaintiff's responses to these requests "were neither proper nor code compliant as they simply contained a few screenshots and a couple of videos, despite specific demands for downloaded copies of decedent's social media pages, ..." (Sorrentino Decl., ¶ 11, Ex. H-K.) A review of the documents produced indicates that Plaintiff did not fully comply as a downloaded copy of Decedent's personal Facebook page, a downloaded copy of Decedent's personal Instagram page, a downloaded copy of Decedent's personal TikTok page, and a downloaded copy of Decedent's personal X (formerly Twitter) page were not produced as requested by Requests for Production, Nos. 54-57. Accordingly, the Court GRANTS the motion to compel compliance as to Requests for Production, Nos. 54-57. Plaintiff is ORDERED to produce the materials and documents requested by Requests for Production, Set

		Two, Nos. 53-57 in accordance with Plaintiff's agreement to produce within 30 days. *Terminating* Defendant seeks terminating sanctions and a monetary sanction. Here, Defendant has shown that Plaintiff has failed to engage in discovery or meet and confer efforts, but has not shown a failure to comply with a court order. Defendant does not otherwise present evidence supporting the issuance of a terminating sanction. Defendant's request for a terminating sanction is DENIED. *Monetary Sanctions* As the Court grants the motion, and there is no showing that Plaintiff acted with substantial justification or that other circumstances make the imposition of the sanction unjust, the Court grants a monetary sanction. Defendant requests that monetary sanctions in the amount of $2,075.45 be awarded. The requested amount consists of 2.5 hour to draft this motion, an anticipated 1.5 hours to review the opposition and draft a reply, and 1 hour for the hearing on the motion, at $400 per hour, in addition to $75.45 for the filing fee. (Sorrentino Decl., ¶¶ 28-29.) As there is no opposition or reply, the Court GRANTS reduced monetary sanctions in the amount of $1,475.45 ($400/hour x 3.5 + $75.45) against Plaintiff, to be paid within 30 days. *Defendant to give notice*.
101	Space Exploration Technologies Corp. vs. Enteshari, 23-01365637	On 12/12/2025 Defendants filed the following Motions , set for hearing on 6/25/2026: (ROA 169) Defendant Ali Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Requests for Production of Documents and Tangible Things, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. [Note: MP fails to indicate which RPDs are at issue in the notice of motion, nor does MP indicate how much money in sanctions he seeks.] (ROA 181) Defendant Amin Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Requests for Production of Documents and Tangible Things, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion.

		(ROA 185) Defendant Amin Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Special Interrogatories, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. (ROA 189) Defendant Ali Enteshari ("Defendant") will move to compel Plaintiff Space Exploration Technologies Corp. ("Plaintiff") to provide further responses to Special Interrogatories, Set One, and reimburse Defendant for his attorneys' fees incurred in bringing this Motion. Additionally, on 4/10/2026 Plaintiff filed the following Motions: (ROA 203) Plaintiff Space Exploration Technologies Corp. ("Plaintiff") will and hereby does move this Court pursuant to California Code of Civil Procedure section 2031.310(a) for an order compelling Defendant Ali Enteshari ("Defendant") to provide further responses to Plaintiff's Third Set of Requests for Production of Documents, Numbers 67 68, 71-76, and 78. Plaintiff also moves for sanctions against Defendant his counsel at Berstein Law PC pursuant to California Code of Civil Procedure §§ 2031.310(h) and 2023.050(a)(3), in the amount of $2,000. (ROA 207) Plaintiff Space Exploration Technologies Corp. ("Plaintiff") will and hereby does move this Court pursuant to California Code of Civil Procedure section 2031.320(a) for an order compelling Ali Enteshari ("Defendant") to comply with his response to Plaintiff's requests for production of documents, set one, numbers 22, 43, and 48-49, and set two, numbers 58-60 and 61-66. Plaintiff also moves pursuant to California Code of Civil Procedure sections 2031.320(b) and 2023.050(a)(3) for sanctions in the amount of $5,000 against Defendant and his counsel at Berstein Law PC, jointly and severally. Notably, on 6/1/2026 pursuant to a Plaintiff's Ex Parte, Judge Hesseltine advanced ROAS 203, 207 to be heard on 6/25/2026. (See ROA 225). As such, on calendar for 6/25/2026 are six (6) discovery motions; and to date, the parties herein have filed eight (8) discovery motions. In total, as to these six (6) motions (and without counting reply documents), the parties filed over 2,000 pages of documents for this Court to wade through. MEET AND CONFER

		The motions must be accompanied by a declaration stating facts showing a "reasonable and good faith attempt, either in person, by telephone or by videoconference" to resolve informally the issues presented by the motion before filing the motion. [CCP §§ 2016.040 (amended eff. 1/1/26), 2030.300(b)(1).] The purpose of the meet and confer requirement is to force lawyers to reexamine their positions, and to narrow their discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. It also enables parties and counsel to avoid sanctions that are likely to be imposed if the matter comes before the court. [*Stewart v. Colonial Western Agency, Inc*. (2001) 87 CA4th 1006, 1016.] Various factors may be considered by the court in determining whether a party made a "reasonable" and "good faith" attempt to resolve the issue informally, including: • Size of case, complexity of discovery: Greater effort at informal resolution may be required in larger, more complex cases; • Previous relations with opposing counsel: The history of the litigation and the nature of the interaction between counsel; • Present dispute: The nature of the issues, and the type and scope of discovery requested; • Timing: Making the first attempt to meet and confer shortly before the filing deadline may lead to a finding that there was no good faith attempt to resolve the issues informally. Conversely, a delayed response to a meet and confer letter may lead to the same finding as to the responding party; • Prospects for success: Whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit; • Evidence of discovery abuse? When discovery requests are grossly overbroad on their face, and hence do not appear reasonably related to a legitimate discovery need, a reasonable inference can be drawn of an intent to harass and improperly burden. [*Obregon v. Sup.Ct. (Cimm's, Inc.)* (1998) 67 CA4th 424, 431; *Marriage of Moore* (2024) 102 CA5th 1275, 1293-1296.] Failing to make a "reasonable and good faith attempt in person, by telephone or by videoconference" to resolve the issues informally before a motion to compel is filed constitutes a "misuse of the discovery process." Monetary sanctions can be imposed against whichever party is guilty of such conduct, even if that party wins the motion to compel. [CCP §§ 2023.010(i).]

		In this instance, as to the four motions filed by Defendants, Defense Attorney David A. Berstein, declares, "As scheduled, on December 3, 2025, the Parties met and conferred, via phone, regarding Defendant's November 12, 2025, meet and confer letter." (Berstein Decl.¶10.) Apparently, "The Parties did not come to an agreement on the call, so the Parties agreed to an extension of the Motion to Compel deadline to December 12, 2025, so the Parties could continue meet and confer discussions post-call." (Id.¶11.) Thereafter, Mr. Berstein declares, "Plaintiff's counsel confirmed the deadline and also stated, 'Thanks for taking the time to discuss today. I know we talked about defendants coming up with a more specific list for further discussion, and it would probably make sense to have another call after that, maybe with David joining so we can iron out any remaining differences.'" (Id.¶13.) That is, Plaintiff's counsel was asking that declarant, David, could join in on the meet and confer. Mr. Berstein indicates, "Defendant's counsel replied, 'Thank you for your time yesterday as well. I spoke with David, and we remain firm in our positions detailed in our November 12, 2025, meet and confer letter, which were reiterated yesterday on our call. Also, during our call yesterday, we discussed Plaintiff assessing, after the call, whether Plaintiff would be willing to supplement any of its responses. Is Plaintiff looking to supplement any discovery? If not, it appears the Parties are at an impasse, and we will be proceeding with our Motions.'" (Id.¶14.) These motions followed because Plaintiff did not supplement the responses. However, Counsel for Plaintiff paints a different picture. Attorney Randy R. Haj filed declarations in support of Defendants' oppositions indicating: "9. Defendants Failed to Engage in Good Faith Meet and Confer Efforts This motion was preceded by a cursory meet and confer on December 3, 2025, which was conducted between myself and the most junior attorney on Defendants' legal team, Kia Mojabe. Ms. Mojabe explained at the outset of the call that she did not have authority to bind Defendants to anything and would need to check with one of the partners on the case, either lead counsel David Berstein or J.R. Dimuzio, to confirm anything we discussed. "10. During the call, I asked why the responses agreeing to provide all nonprivileged responsive documents were

		insufficient, but Ms. Mojabe would not provide any explanation and simply repeated she did not think the responses were adequate. I also asked for the relevance of the demands seeking Plaintiff's fraud-prevention measures and policies to control access to its technology, but her only response was to repeat "we think it's relevant" (or words to that effect) several times." Plaintiff argues that while the meet and confer took place on December 3, 2025, Defendant's counsel handed the process off to the lowest-level associate on the team who explained from the outset she would have to check with one of the partners before agreeing to anything. Then, after the meet and confer, when Mr. Haj asked for Lead Defense Attorney, David Berstein, to take part in the discussions, it appears Defendants disagreed as to the necessity of this next step in the meet and confer efforts; and rather, opted to stand by their positions. Given that a) Defense counsel handed this matter over to a junior associate with no authority to bind defendants b) and has filed four (4) motions with approximately 190 responses at issue, the Court finds that further meeting and conferring, in good faith, with lead counsel, is in order. As to Plaintiff's Motions (ROA 203, 207), As to the Motion to Compel Defendant Ali Enteshari's Compliance With His Response to Requests for Production Sets One and Two (ROA 207), Attorney Haj declares: "10. Plaintiff attempted to meet and confer prior to filing this Motion but Defendants' counsel refused to make themselves available for a phone call. I first wrote Plaintiff's counsel about all of the issues raised in the Motion on February 17, 2026, and asked for a time to meet and confer. I followed up on February 20, February 26, and March 4, but Defendants' counsel never provided a substantive response or a time to meet and confer. Attached hereto as Exhibit "1" is a true and correct copy of my meet and confer emails to Defendants' counsel (David Berstein, JR Dimuzio, and Kia Mojabe, all of Berstein Law PC)." (ROA 196) As to the Motion to Compel Further Responses to Its Third Set of Requests for Production to Defendant Ali Enteshari (ROA 203), Attorney Haj declares: "7. Plaintiff attempted to meet and confer prior to filing this Motion. I first wrote Plaintiff's counsel about all of

		the issues raised in the Motion on February 10, 2026, and asked for a time to meet and confer. I followed up on February 12, 17, 20, and 26, and again on March 4, but Defendants' counsel never provided a substantive response or a time to meet and confer. Attached hereto as Exhibit "1" is a true and correct copy of my meet and confer emails to Defendants' counsel (David Berstein, JR Dimuzio, and Kia Mojabe, all of Berstein Law PC)." (ROA 201) Defendants contend that the meet and confer record established by Plaintiff is incomplete, and that, "As reflected in Exhibit A, on February 12, 2026, at 4:43 p.m., Cassidy Valenzuela of Berstein Law, PC responded to Plaintiff's counsel, Randy Haj, advising him that "David and J.R. have been in a federal trial since Tuesday" and that his email would be brought to their attention once they were back in the office." (Berstein Decl.¶5, ROA 272.) However, this does not explain why Defendants failed to make time to meet and confer prior to Plaintiff filing these motions on 4/10/2026. Therefore, it does not appear that the parties have engaged in any meet and confer whatsoever as to ROAS 203, and 207 prior to their filing. Therefore, the Court finds that further meeting and conferring, in good faith, with lead counsel, is in order. All in all, the above meet and confer efforts were slim and in no way narrowed the parties discovery disputes to the irreducible minimum, before calling upon the court to resolve the matter. All six (6) Motions are continued to July 23, 2026 at 1:30 p.m. Lead Counsel is ordered to meet and confer in person, via videoconference, or via telephone. Nine (9) Court days prior to the continued hearing date, counsel to file a joint separate statement setting forth the results of the meet and confer; to the extent any disputes remain, and as to those disputes: 1) set forth the request, 2. response, 3. why or why not further response is necessary. Additionally, the parties are directed to review the Pre-Trial Discovery Conference guidelines developed by this Department and accessible at https://www.occourts.org/system/files/civil/pre-trial-discovery-conference-guidelines. The Court will reserve the right to sanction either party or both at the continued hearing date.

		Clerk to give notice.
102	Legg vs. CSCDA Community Improvement Authority, 25-01492979	Defendant CSCDA Community Improvement Authority ("CSCDA") demurs to all causes of action in Plaintiffs' Complaint on the grounds that Plaintiffs failed to allege compliance with the claims presentation requirement of the Government Claims Act (Government Code §900 et seq.). Under the Government Claims Act, "no suit for money or damages may be brought against a [local] public entity ... until a written claim therefor has been presented to the public entity and has been acted upon by the board, or has been deemed to have been rejected by the board...." (Gov't Code § 945.4; *see also Barrios v. California Interscholastic Federation* (9th Cir. 2002) 277 F.3d 1128, 1136, fn. 6.) A "local public entity" is defined as "a county, city, district, public authority, public agency, and any other political subdivision or public corporation in the State...." (Gov't Code § 900.4.) Here, it is not clear from the face of the Complaint whether CSCDA is a public agency. CSCDA therefore asks this Court to take judicial notice of the following: 1. The CSCDA COMMUNITY IMPROVEMENT AUTHORITY is a Public Entity under California's Government Code §811.2, §945.4 and §6500. See Declaration of Kevin J. Price, Paragraph 3, and Exhibit A, thereto. 2. Exhibit A to the accompanying declaration of Kevin J. Price is a true and correct copy of the JOINT EXERCISE OF POWERS AGREEMENT RELATING TO THE CSCDA COMMUNITY IMPROVEMENT AUTHORITY. (Declaration of Kevin J. Price filed concurrently herewith, ¶ 3; Exhibit A thereto) (ROA 45, RJN.) Paragraph 3 of the declaration of Kevin J. Price states: "I am informed and believe and based thereon state that the CSCDA COMMUNITY IMPROVEMENT AUTHORITY is a Public Entity under California's Government Code §811.2, §945.4 and §6500." Kevin J. Price is counsel of record for Defendants in this case. (Price Decl., ¶ 1.) He lays no foundation for the statement that CSCDA is a public entity, and is only able to make that declaration on information and belief.

		Further, he lays no foundation for authentication of Exhibit A. He states that Exhibit A "is a true and correct copy of the document entitled "JOINT EXERCISE OF POWERS AGREEMENT RELATING TO THE CSCDA COMMUNITY IMPROVEMENT AUTHORITY" which I believe to be a true and correct copy of the document forming the public entity "CSCDA COMMUNITY IMPROVEMENT AUTHORITY" on or about October 15, 2020." (Price Decl. ¶ 4.) In sum, Price has not sufficiently authenticated Exhibit A, nor has he laid any foundation for his conclusion that CSCDA is a public entity within the meaning of the Government Claims Act. Whether CSCDA is a public entity is a disputed ultimate fact in this case. Thus, it cannot be said that the Complaint is deficient for failure to allege compliance with the Government Claims Act. Accordingly, the demurrer is OVERRULED. CSCDA shall file its answer within 20 days. Defendants' requests for judicial notice are DENIED. The materials requested to be judicially noticed are not the proper subject of judicial notice. Plaintiffs' requests for judicial notice are DENIED as immaterial to the resolution of this demurrer. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. *CSCDA to give notice.*
103	Club Speed, LLC vs. K1 Speed, Inc., 22-01241507	Defendants Outlier K1S Equity Holdings, LLC and David Tedesco (collectively, "Outlier Defendants") demur to the third and fifth causes of action of plaintiff Club Speed, LLC's ("Clubspeed" or "Plaintiff") First Amended Complaint (FAC). *Intentional Interference with Contract* Outlier Defendants argue this cause of action fails to allege sufficient facts because there are no specific actions alleged against them, Plaintiff improperly attempts to lump all defendants together, and the allegations are made on information and belief without including any information that led Plaintiff to believe the allegations to be true. Outlier Defendants further argue that in a proposed second amended complaint attached to Plaintiff's motion for leave to amend, which was withdrawn before being heard, Plaintiff fails to allege that they made any of the alleged false or disparaging statements to K1 franchisees.

		The Court will not consider any allegations made in Plaintiff's proposed second amended complaint, as they are irrelevant to whether the FAC properly states a claim. " 'The elements which a plaintiff must plead to state the cause of action for intentional interference with contractual relations are (1) a valid contract between plaintiff and a third party; (2) defendant's knowledge of this contract; (3) defendant's intentional acts designed to induce a breach or disruption of the contractual relationship; (4) actual breach or disruption of the contractual relationship; and (5) resulting damage.' " (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal.4th 26, 55.) The FAC alleges that Clubspeed and defendant K1 Speed, Inc. ("K1") entered into software license agreements and a referral agreement pursuant to which K1 agreed that Clubspeed would be the exclusive partner for K1 and its software used at 29 current locations as well as all new locations. Plaintiff alleges that K1 breached the agreements by developing its own software. Plaintiff alleges that it had valid contracts with K1 franchisees, defendants knew of the existence of those contracts, and defendants, with the intent to interfere, caused a disruption of those contracts by directing the franchisees to switch to new software. As a result, Plaintiff alleges it has suffered damages in an amount not less than $300,000. These allegations are sufficient to establish each element of a cause of action for intentional interference. The FAC understandably does not allege any specific facts against the Outlier Defendants, as they were added as Doe defendants after the FAC was filed. However, as Doe defendants, the Outlier Defendants are alleged to be legally responsible for the events and damages alleged in the FAC. (FAC ¶ 10.) Outlier Defendants offer no authority showing that these allegations against them as Doe defendants are insufficient as a matter of law. Further, while Outlier Defendants are correct that allegations made on information and belief must be accompanied by information that leads the plaintiff to believe that the allegations are true, the Court finds that the facts alleged in the FAC taken as a whole provide such information. *Trade Libel* Outlier Defendants argue that this cause of action fails to allege any publication for purposes of a trade libel or alleged false statements.

		Plaintiff concedes the fifth cause of action is technically mislabeled and instead should be one for defamation. Thus, so long as a cause of action for defamation is properly alleged, the Demurrer must be overruled. (*Adelman v. Associated Intern. Ins. Co*. (2001) 90 Cal.App.4th 352, 359; *Sheehan v. San Francisco 49ers, Ltd.* (2009) 45 Cal.4th 992, 998.) The elements of a defamation claim are "(1) a publication that is (2) false, (3) defamatory, (4) unprivileged, and (5) has a natural tendency to injure or causes special damage." (*Wong v. Tai Jing* (2010) 189 Cal.App.4th 1354, 1369.) Plaintiff alleges that defendants made false statements about Plaintiff to persons with whom Plaintiff is contracted, including statements that Plaintiff lies about its customer count and is a shell that does not make any money, steals money in processing credit cards, and engaged in wrongful conduct harming a former owner. Plaintiff alleges these statements had a defamatory meaning because they would tend to lower Plaintiff's reputation in the industry and, to the extent they accuse Plaintiff of engaging in criminal conduct, they are defamatory per se. These allegations set forth facts establishing all of the elements of a defamation cause of action. Based on the above, the Demurrer is OVERRULED. As Outlier Defendants already filed their Answer on November 15, 2025, no further responsive pleading is required. *Moving party to give notice.*
104	Holl vs. ADK Bancorp, Inc., 22-01257212	<u>Defendant 5 Star Housing, LLC's Motion for Attorney's Fees</u> Defendant, 5 Star Housing, LLC ("5 Star Housing"), moves for an order awarding reasonable attorneys' fees in the amount of $35,400 against Plaintiff Mai Tran Holl. 5 Star Housing contends that this motion is brought pursuant to Code of Civil Procedure sections 1032, 1033.5, and 1717; that the Residential Purchase Agreement ("RPA") in this action includes a broad provision entitling the prevailing buyer to seller to reasonable attorney's fees and costs from the non-prevailing or seller in any action between the buyer and seller arising out of the RPA; that 5 Star Housing assigned its RPA buyer's rights to Defendant My Groups Inc. which Plaintiff accepted and signed; and that the Assignment did not release 5 Star Housing from the obligations and covenants under the RPA and preserved

		"all rights and remedies under the Agreement," including the RPA's attorney's fees provision. 5 Star Housing asserts that Plaintiff asserted causes of action for fraud, conspiracy to defraud, and financial elder abuse against 5 Star Housing and that because Plaintiff's causes of action against 5 Star Housing sound in tort, 5 Star Housing remains entitled to seek recovery of attorney's despite the fact that Plaintiff filed a voluntary dismissal of 5 Star Housing on the day of trial. *Timeliness of Motion* When "prevailing party" status or the "reasonableness" of attorney fees requested must be determined by the trial court, a notice of motion claiming fees for services up to and including rendition of the trial court judgment [including attorney fees on an interim appeal before rendition of the judgment] must be served and filed within the time for filing a notice of appeal [CRC, rules 8.104, 8.108]. (CRC, rule 3.1702(b)(1); *see P R Burke Corp. v. Victor Valley Wastewater Reclamation Auth*. (2002) 98 Cal.App.4th 1047, 1052 [motion "almost always" filed after entry of judgment because until then "there is technically no prevailing party" and "parties may still incur additional fees."].) The normal time limit for filing a notice of appeal [and hence for an attorney fees motion] is 60 days after the superior court clerk's service of a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment showing the date either was served, or any party's service of a document entitled "Notice of Entry" of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service, or 180 days after the date of entry, whichever is the earliest. (CRC, rule 8.104(a).) The 60-day time limit commences to run at notice of entry of judgment or dismissal." (*Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 429 [voluntary dismissal]; *Exxess Electronixx v. Heger Realty Corp.* (1998) 64 Cal.App.4th 698, 706 [dictum suggesting CRC, rule 3.1702 does not establish any deadline for filing motion for attorney fees where the cross-complaint was resolved by way of settlement and dismissal].) On September 22, 2025, Plaintiff filed a voluntary dismissal of 5 Star Housing, and served only a non-conformed copy. (Declaration of Daniel I. Halimi, ¶ 3.) Nor does it appear that the superior court clerk served a document entitled "Notice of Entry" of dismissal or a filed-endorsed copy of the dismissal, or that any party served a document entitled, "Notice of Entry" of dismissal. Therefore, it appears that 5 Star Housing had 180 days after the date of entry of the dismissal, i.e., September 22, 2025, to serve and file the instant motion for attorney's fees. As the instant motion was filed on

		November 21, 2025, and served on November 21 and 24, 2025, it was timely filed and served. *Entitlement to Attorney's Fees* "[E]ach party to a lawsuit is responsible for his or her own attorney's fees in the absence of an agreement between the parties for fees or a statute specifically authorizing fees. [Citations.]" (*Pederson v. Kennedy* (1982) 128 Cal.App.3d 976, 979.) Except as attorney's fees are specifically provided for by statute, attorney's fees are permitted by contract. Under Code of Civil Procedure section 1032, attorney's fees are recoverable as costs when authorized by contract, statute or law. (Code Civ. Proc. § 1033.5(a)(10)(A)-(C).) A prevailing party is entitled as a matter of right to recover costs in any action, except as otherwise expressly provided by statute. (Code Civ. Proc. § 1032.) Under Code of Civil Procedure section 1032, attorney's fees are recoverable as costs when authorized by contract. (Code Civ. Proc. § 1033.5(a)(10)(A).) Civil Code section 1717, subdivision (a) provides, "In any action on a contract, where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney's fees in addition to other costs." (Civil Code § 1717(a).) Civil Code section 1717(b)(1) states: "The court, upon notice and motion by a party, shall determine who is the party prevailing on the contract for purposes of this section, whether or not the suit proceeds to final judgment. Except as provided in paragraph (2), the party prevailing on the contract shall be the party who recovered a greater relief in the action on the contract. The court may also determine that there is no party prevailing on the contract for purposes of this section." (Civil Code § 1717(b)(1).) Civil Code section 1717(b)(2) provides, "Where an action has been voluntarily dismissed or dismissed pursuant to a settlement of the case, there shall be no prevailing party for the purposes of this section." Civil Code section 1717(b)(2) is construed as "barring recovery of attorney fees in pretrial dismissal cases whether those fees are sought on the basis of the contractual provision or under section 1717." (*Santisas v. Goodwin* (1998) 17 Cal.4th 599, 613, 616.) "When a plaintiff files a complaint containing causes of action within the scope of section

		1717 (that is, causes of action sounding in contract and based on a contract containing an attorney fee provision), and the plaintiff thereafter voluntarily dismisses the action, section 1717 bars the defendant from recovering attorney fees incurred in defending those causes of action, even though the contract on its own terms authorizes recovery of those fees." (*Id*. at p. 617.) "This bar, however, applies only to causes of action that are based on the contract and are therefore within the scope of section 1717. If the voluntarily dismissed action also asserts causes of action that do not sound in contract, those causes of action are not covered by section 1717, and the attorney fee provision, depending upon its wording, may afford the defendant a contractual right, not affected by section 1717, to recover attorney fees incurred in litigating those causes of action." (*Ibid*.) The court retains jurisdiction to determine who is a prevailing party for the purposes of awarding attorney fees and costs following a voluntary dismissal. (*Parrott v. Mooring Townhomes Ass'n, Inc*. (2003) 112 Cal.App.4th 873, 877-879.) The court is to analyze which party prevailed on a practical level. (*Heather Farms Homeowners Assn. v. Robinson* (1994) 21 Cal.App.4th 1568, 1574.) " '[T]he [party] . . . seeking fees and costs " 'bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.' [Citation.]" ' (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1320.) Here, Plaintiff's Verified Complaint asserts causes of action for fraud-misrepresentation (third cause of action), financial elder abuse (fourth cause of action), cancellation of written instrument (fifth cause of action), and declaratory relief (sixth cause of action) against 5 Star Housing. Paragraph 25 of the RPA entered into between Plaintiff and 5 Star Housing states, "In any action, proceeding, or arbitration between Buyer and Seller arising out of this Agreement, the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 22A." (Ex. 2 to Complaint, RPA at p. 9, ¶ 25.) Paragraph 22A, which provides that the Parties agree to mediate any dispute or claim arising between them out of the RPA or any resulting transaction before court action, states, in part: "If, for any dispute or claim to which this paragraph applies, any Party (i) commences an action without first attempting to resolve the matter through

		mediation, or (ii) before commencement of an action, refuses to mediate after a request has been made, then that Party shall not be entitled to recover attorney fees, even if they would otherwise be available to that Party in any such action." (Ex. 2 to Complaint, RPA at p. 9, ¶ 22A.) While 5 Star Housing cites to paragraph 25 of the RPA as authorizing attorney's fees for Plaintiff's tort claims in this action, 5 Star Housing does not address paragraph 22A at all, and presents no evidence showing that the exception provided in paragraph 22A does not apply such that it is entitled to attorney's fees under paragraph 25. As 5 Star Housing fails to establish that it is entitled to attorney's fees under paragraph 25 of the RPA, the Court DENIES 5 Star Housing's motion for attorney's fees. *5 Star Housing to give notice.* Defendants, ADK Bancorp, Inc. dba Advance Estate Realty and Ngoc Kim Tran's Motion for Attorney's Fees Defendants, ADK Bancorp, Inc. dba Advance Estate Realty ("ADK") and Ngoc Kim Tran ("Tran"), move for an order granting attorney's fees and costs following trial in the amount of $18,217.83 for costs and $86,696 for attorney's fees from June 2022 to the present, and $1,125 to prepare the instant motion and appear at the hearing on this motion. The amounts referenced in the motion are not all consistent with the amounts set forth in the declaration supporting the motion. The Court relies on the amounts provided in the declaration. ADK and Tran contend they are entitled to recovery of their costs and attorney's fees under Code of Civil Procedure sections 1021, 1032(a)(4), 1032(b), and 1033.5(a)(10)(A), and Civil Code section 1717(a). They contend that they are the prevailing party as after trial on September 24, 2025, the Court found in their favor and against Plaintiff on the following causes of action: Second Cause of Action - Breach of Fiduciary Duty; Third Cause of Action – Fraud; Fourth Cause of Action - Financial Elder Abuse; Sixth Cause of Action - Declaratory Relief; and Seventh Cause of Action - Breach of Contract, such that the Court found that ADK and Tran were the prevailing parties as to Plaintiff's Complaint, and thus, they are entitled to recovery of costs. ADK and Tran additionally contend that they are entitled to attorney's fees as prevailing parties under paragraph 18 of the Residential Listing Agreement, that Plaintiff's

		action against them was one "on a contract," that Plaintiff did not attempt to mediate before filing a lawsuit against them and they did not have the opportunity mediate before being thrusted into this action, and that the Court should award the attorney's fees they incurred totaling $86,696.00 from June 2022 (e.g., the date ADK retained counsel to defend this action) and September 24, 2025 (e.g., the date The Court found in favor of ADK against Plaintiff for their causes of action) in connection with their successful defense of this action. ADK and Tran further contend that they should be awarded fees for the instant motion, and that the requested rates are reasonable. *Attorney's Fees* " '[T]he [party] . . . seeking fees and costs " 'bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.' [Citation.]" ' (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1320.) Paragraph 18 of the Residential Listing Agreement between Plaintiff and ADK, and signed by Tran, states: "In any action, proceeding or arbitration between Seller and Broker to enforce the compensation provisions of this Agreement, the prevailing Seller or Buyer shall be entitled to reasonable attorney fees and costs from the non-prevailing Seller or Broker, except as provided in paragraph 22A." (Ex. 1 to Complaint, Residential Listing Agreement, at p. 4, ¶ 18.) Paragraph 22A, which provides that the Parties agree to mediate any dispute or claim arising between regarding the obligation to pay compensation under the agreement before resorting to arbitration or court action, states, in part: "If, for any dispute or claim to which this paragraph applies, any Party (i) commences an action without first attempting to resolve the matter through mediation, or (ii) before commencement of an action, refuses to mediate after a request has been made, then that Party shall not be entitled to recover attorney fees, even if they would otherwise be available to that party in any such action." (Ex. 1 to Complaint, Residential Listing Agreement, at p. 5, ¶ 22A.) Although ADK and Tran contend in the motion that Plaintiff did not attempt to mediate before filing a lawsuit against them, and that they did not have the opportunity to mediate before being thrust in this action, as well as that "the lack of stability from Plaintiff's side made it difficult to set up mediation and proceed with the case, ...", no evidence is submitted to support these assertions. (ROA 445, ADK and Tran's Motion, 5:27-6:1-

		10.) As a result, ADK and Tran fail to show that exception provided in paragraph 22A does not apply such that they are entitled to attorney's fees under paragraph 18 of the Residential Listing Agreement. As ADK and Tran fail to establish they are entitled to attorney's fees under paragraph 18 of the Residential Listing Agreement, the Court DENIES ADK and Tran's motion for attorney's fees. *Costs* As to costs, " '[t]he right to recover any of the costs of a civil action "is determined entirely by statute." ' [Citation.]" (*Charton v. Harkey* (2016) 247 Cal.app.4th 730, 737 ("*Charton*").) " 'Section 1032 governs the award of costs of trial court litigation.' [Citation.]" (*Ibid*.) The prevailing party is entitled to costs as a matter of right in any action or proceeding, except as otherwise provided by statute. (Code Civ. Proc. § 1032(b).) "Section 1032, subdivision (a)(4), defines who is the prevailing party entitled to costs," and the first sentence of that subdivision " 'describes four categories of litigants who automatically qualify as prevailing parties . . . .' [Citations.]" (*Charton, supra*, 247 Cal.App.4th at p. 737.) A "prevailing party" is defined to include "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not ...." (Code Civ. Proc. § 1032(a)(4).) Here, Plaintiff's Verified Complaint asserts causes of action for breach of fiduciary duty (second cause of action), fraud-misrepresentation (third cause of action), financial elder abuse (fourth cause of action), declaratory relief (sixth cause of action), and breach of contract (seventh cause of action) against ADK and/or Tran. On September 24, 2025, after a court trial, the Court found in favor of Defendant against Plaintiff on the second cause of action for breach of fiduciary duty, third cause of action for fraud, fourth cause of action for financial elder abuse, sixth cause of action for declaratory relief, and seventh cause of action for breach of contract. (ROA 436.) As Plaintiff did not recover any relief against ADK and Tran, ADK and Tran are the prevailing parties and entitled to costs.

"Section 1033.5, subdivision (a), identifies the specific cost items a prevailing party may recover as a matter of right, ... Section 1033.5, subdivision (b), identifies specific cost items that a prevailing party may not recover, ... Section 1033.5, subdivision (c)(4), grants the trial court discretion to award a cost item that is neither allowed under subdivision (a) nor prohibited under subdivision (b)." (*Charton, supra*, 247 Cal.App.4th at pp. 738-739.)

"All costs awarded to a prevailing party must be (1) incurred by that party, whether or not paid; (2) 'reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation'; and (3) reasonable in amount. [Citations.]" (*Charton, supra*, 247 Cal.App.4th at p. 739.)

"If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary." (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266 ("*Jones*").) Statements in points and authorities and declaration of counsel are insufficient to rebut the prima facie showing. (*Jones, supra*, 63 Cal.App.4th at p. 1266.) For items that are properly objected to, the burden of proof is on the party claiming them as costs. (*Ibid*.)

"There is no requirement that copies of bills, invoices, statements, or any such documents be attached to the memorandum. Only if the costs have been put in issue via a motion to tax costs must supporting documentation be submitted. [Citation.] Once this occurs, the issue becomes whether the required documentation must be of evidentiary quality." (*Jones, supra*, 63 Cal.App.4th at p. 1267.)

Here, ADK and Tran filed a Memorandum of Costs (Summary) and Memorandum of Costs (Worksheet) concurrently with the motion for attorney's fees on November 12, 2025, and these documents are also attached to the declaration filed in support of the motion. The Memorandum of Costs is signed by ADK and Tran's counsel and claims the following items:

1. Filing and motion fees - $2,167.71
4. Deposition Costs - $745
6. Attachment expenses - $3,127.46
8. Witness fees - $4,823
11. Court reporter fees as established by statute - $4,670.75
12. Interpreter fees - $2,350

		13. Models, enlargements, and photocopies of exhibits - $281.41 15. Other - $82.50 (ROA 447, Declaration of Jason Murphy, ¶ 4, Exs. 1 and 2.) Based on the Court's calculations, the total costs for these items amount to $18,247.83, not $18,217.83, as referenced in the declaration. The costs for Item Nos. 1, 4, 6, 8, 11, 12, and 13 appear on their face to be proper charges. There is no opposition, and Plaintiff fails to show that any of the claimed costs were not reasonable or necessary. The Court GRANTS costs in the amount of $18,165.33 for these items. However, "Other" costs in the amount of $82.50 are for "Court Minute Order Copies," and do not appear on its face to be a proper charge. (ROA 443.) As there is no evidence showing that these copies were reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation, the Court DENIES these costs. *ADK and Tran to give notice*. <u>Defendant, My Groups, Inc.'s Motion for Attorney's Fees</u> Defendant, My Groups, Inc. ("My Groups"), moves for an order awarding it attorney's fees in the sum of $91,554 and costs incurred pursuant to the Memorandum of Costs in the amount of $5,946.58. *Attorney's Fees* "[E]ach party to a lawsuit is responsible for his or her own attorney's fees in the absence of an agreement between the parties for fees or a statute specifically authorizing fees. [Citations.]" (*Pederson v. Kennedy* (1982) 128 Cal.App.3d 976, 979.) Except as attorney's fees are specifically provided for by statute, attorney's fees are permitted by contract. Under Code of Civil Procedure section 1032, attorney's fees are recoverable as costs when authorized by contract, statute or law. (Code Civ. Proc. § 1033.5(a)(10)(A)-(C).) The court retains jurisdiction to determine who is a prevailing party for the purposes of awarding attorney fees and costs following a voluntary dismissal. (*Parrott v. Mooring Townhomes Ass'n, Inc.* (2003) 112 Cal.App.4th 873, 877-879.) The court is to analyze which party prevailed on a practical level. (*Heather Farms*

		Homeowners Assn. v. Robinson (1994) 21 Cal.App.4th 1568, 1574.) " '[T]he [party] . . . seeking fees and costs " 'bear[s] the burden of establishing entitlement to an award and documenting the appropriate hours expended and hourly rates.' [Citation.]" ' (*Christian Research Institute v. Alnor* (2008) 165 Cal.App.4th 1315, 1320.) Here, My Groups relies on the provisions of the Residential Purchase Agreement ("RPA") that are at issue in 5 Star Housing's motion, asserting that 5 Star Housing assigned the RPA to My Groups who paid the agreed price and closed escrow. (ROA 460, My Groups' Motion, 3:6-7, 4:18-5:2.) The Verified Complaint alleges that on or about October 24, 2021, 5 Star Housing executed an Assignment of Agreement Addendum that assigned its right to purchase the subject property to My Groups. (Complaint, ¶ 24, Ex. 2.) Paragraph 25 of the RPA states, "In any action, proceeding, or arbitration between Buyer and Seller arising out of this Agreement, the prevailing Buyer or Seller shall be entitled to reasonable attorney fees and costs from the non-prevailing Buyer or Seller, except as provided in paragraph 22A." (Ex. 2 to Complaint, RPA at p. 9, ¶ 25.) Paragraph 22A, which provides that the Parties agree to mediate any dispute or claim arising between them out of the RPA or any resulting transaction before court action, states, in part: "If, for any dispute or claim to which this paragraph applies, any Party (i) commences an action without first attempting to resolve the matter through mediation, or (ii) before commencement of an action, refuses to mediate after a request has been made, then that Party shall not be entitled to recover attorney fees, even if they would otherwise be available to that Party in any such action." (Ex. 2 to Complaint, RPA at p. 9, ¶ 22A.) The motion argues that Plaintiff commenced this lawsuit on April 29, 2022, without seeking to mediate the matter with any of the Defendants including My Groups. (ROA 460, My Groups' Motion, 4:21-5:4.) As My Groups fails to establish that the exception provided in paragraph 22A does not apply such that it is entitled to attorney's fees under paragraph 25, it fails to establish that it is entitled to attorney's fees under paragraph 25 of the RPA. Thus, the Court DENIES My Groups' motion for attorney's fees.

		To the extent that My Groups argues that it is entitled to attorney's fees as the prevailing party on a motion to expunge lis pendens, My Groups fails to discuss the statute cited in the notice, Code of Civil Procedure section 405.38, and fails otherwise discuss this issue and establish this is the case. The court may "'disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which [a party] reached the conclusion [he or she] wants [the court] to adopt.'" (*United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 *citing City of Santa Maria v. Adam* (2012) 211 Cal.App.4th 266, 287.) *Costs* The prevailing party is entitled to costs as a matter of right in any action or proceeding, except as otherwise provided by statute. (Code Civ. Proc. § 1032(b).) "Section 1032, subdivision (a)(4), defines who is the prevailing party entitled to costs," and the first sentence of that subdivision " 'describes four categories of litigants who automatically qualify as prevailing parties . . . .' [Citations.]" (Charton, supra, 247 Cal.App.4th at p. 737.) A "prevailing party" is defined to include "the party with a net monetary recovery, a defendant in whose favor a dismissal is entered, a defendant where neither plaintiff nor defendant obtains any relief, and a defendant as against those plaintiffs who do not recover any relief against that defendant. If any party recovers other than monetary relief and in situations other than as specified, the 'prevailing party' shall be as determined by the court, and under those circumstances, the court, in its discretion, may allow costs or not ...." (Code Civ. Proc. § 1032(a)(4).) Here, My Groups' counsel provides that they participated in the three day trial, and obtained a favorable monetary award for My Groups on its Cross-Complaint. (Declaration of Richard Wynn, ¶ 5.) In addition, on September 22, 2025, a request for dismissal, without prejudice, of the Complaint as to Defendant My Groups was entered. (ROA 427.) Based on the foregoing, a dismissal was entered in favor of My Groups, and My Groups obtained a net monetary recovery. Thus, My Groups is the prevailing party and entitled to costs. My Groups filed a Memorandum of Costs (Summary) and Memorandum of Costs (Worksheet) concurrently with the motion for attorney's fees on November 24, 2025. The Memorandum of Costs is signed by My Groups' counsel and claims the following items:

		1. Filing and motion fees - $636.84 6. Attachment expenses - $1,025 11. Court reporter fees as established by statute - $3,497.25 13. Models, enlargements, and photocopies of exhibits – $562.82 14. Fees for electronic filing or service - $224.67 (ROA 472, Memorandum of Costs.) The costs for Item Nos. 1, 6, 11, 13, and 14 appear on their face to be proper charges. There is no opposition, and Plaintiff fails to show that any of the claimed costs were not reasonable or necessary. The Court GRANTS claimed costs as requested in the amount of $5,946.58. My Groups to give notice. *Moving party to give notice as to all motions.*
105	Sullivan vs. Santa Ana Unified School District, 24-01431153	Demurrer to Second Amended Complaint Defendants, Santa Ana Unified School District ("SAUSD") and Mayra Helguera ("Helguera") (collectively, "Defendants"), move for an order sustaining a demurrer to the Second Amended Complaint ("SAC") of Plaintiff, Adrienne Sullivan ("Plaintiff"). Defendants contend that the two causes of action in Plaintiff's SAC are barred as Plaintiff failed to timely exhaust administrative remedies, and that the first cause of action for discrimination based on gender in violation of FEHA fails to state facts sufficient to constitute a cause of action. Failure to Timely Exhaust Administrative Remedies Defendants contend that Plaintiff has not and cannot satisfy the exhaustion of administrative remedies as Plaintiff failed to timely file a FEHA complaint with the Civil Rights Department ("CRD") pursuant to Government Code section 12960(e)(5). Defendants assert that Plaintiff failed to file her FEHA complaint within the three-year statute of limitations, that Plaintiff's own allegations establish that her last day of employment with the District was June 30, 2020, and that as Plaintiff did not file her CRD complaint until October 3, 2023, more than three years after her employment ended, her claims are barred. Defendants assert that Plaintiff may only pursue conduct occurring on or after October 3, 2020, but that the SAC alleges adverse conduct occurring only between June 2019 and Plaintiff's separation date of June 30, 2020 such that all alleged conduct falls outside the applicable three-year statutory period. Defendants also assert that as a matter of law, any alleged misconduct occurring after that June 30, 2020, including the District's post-separation risk-management investigation, cannot constitute an "unlawful employment practice" under FEHA and cannot toll or extend the statute of

		limitations. FEHA's limitations period runs from the date of the alleged employment practice, not from later administrative activity unrelated to the plaintiff's employment. Plaintiff contends that Defendants' argument ignores the continuing violation doctrine, which permits a plaintiff to pursue claims arising from a pattern of related discriminatory acts even if some acts fall outside the limitations period, provided that at least one act occurs within the limitations period, and that CRD complaint lists November 2, 2021 as an adverse action date. Plaintiff contends that at this pleading stage, it is premature to conclude that the administrative complaint failed to exhaust remedies for the earlier harassment and discrimination allegations. "A demurrer can be sustained based on the statute of limitations or other limitations period only if the facts alleged in the complaint, or matters of which judicial notice is taken, disclose ' "clearly and affirmatively" ' that the cause of action is barred. [Citation.]" (*City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 207.) Government Code section 12960(e)(5) states, "[a] complaint alleging a violation of Section 51.9 of the Civil Code or any other violation of Article 1 (commencing with Section 12940) of Chapter 6 shall not be filed after the expiration of three years from the date upon which the unlawful practice or refusal to cooperate occurred." (Govt. Code § 12960(e)(5).) "For the purposes of this section, filing a complaint means filing an intake form with the department and the operative date of the verified complaint relates back to the filing of the intake form." "If the administrative complaint must be filed within one year 'after' the unlawful practice—here, a discharge—'occurred,' then for the purpose of that complaint, the administrative cause of action must accrue and the statute of limitations must run from the time of actual termination." (Romano v. Rockwell Internat., Inc. (1996) 14 Cal.4th 479, 493.) The period specified in the statute begins to run when the administrative remedy accrues, which is the occurrence of the unlawful practice. [Citation.] (*Holland v. Union Pacific Railroad Co*. (2007) 154 Cal.App.4th 940, 945 [applying the then one-year period specified in Government Code section 12960].) "An employee who wants to bring an action under FEHA must exhaust the administrative remedy provided by the statute by filing a complaint with the Civil Rights Department and obtaining from the Department a notice

		of right to sue. [Citations.] " ' "The timely filing of an administrative complaint" before the [Department] "is a prerequisite to bringing a civil action for damages." ' [Citations.]" (*Wawrzenski v. United Airlines, Inc*. (2024) 106 Cal.App.5th 663, 694.) "Effective January 1, 2020 the Legislature amended section 12960 to change this deadline to three years, ..." (*Ibid*.) "Under the 'continuing violation' doctrine, however, 'an employer is liable for actions that take place outside the limitations period of these actions are sufficiently linked to unlawful conduct that occurred within the limitations period.' [Citation.] The continuing violation doctrine requires proof that '(1) the defendant's actions inside and outside the limitations period are sufficiently similar in kind; (2) those actions occurred with sufficient frequency; and (3) those actions have not acquired a degree of permanence.' [Citations.]" (*Id*. at pp. 694-695.) " 'Permanence' means that an employer's actions and statements make clear to a reasonable employee that any further informal efforts to end the discrimination will be futile. [Citation.]" (*Id*. at p. 695.) "Thus, when an employer engages in a continuing course of unlawful conduct under the FEHA by . . . engaging in [] harassment, and this course of conduct does not constitute a constructive discharge, the statute of limitations begins to run . . . either when the course of conduct is brought to an end, as by the employer's cessation of such conduct or by the employee's resignation, or when the employee is on notice that further efforts to end the unlawful conduct will be vain. Accordingly, an employer who is confronted with an employee seeking . . . relief from . . . harassment may assert control over its legal relationship with the employee either by accommodating the employee's requests, or by making clear ot the employee in a definitive manner that it will not be granting any such requests, thereby commencing the running of the statute of limitations.' [Citation.]" (*Hoglund v. Sierra Nevada Memorial-Miners Hospital* (2024) 102 Cal.App.5th 56, 71-72.) Whether the employer had made clear that any further efforts to resolve the harassment and discrimination would be futile is based primarily on the employer's actions and statements, not the employee's subjective belief. (*Id*. at p. 72.) With regards to exhaustion of administrative remedies, the SAC alleges: "On or about October 3, 2023, PLAINTIFF filed complaint(s) of discrimination and retaliation with the California Department of Fair Employment and Housing ("DFEH"). The DFEH complaint(s) alleged PLAINTIFF was discriminated based upon gender-based harassment which created a hostile or abusive work environment and retaliation." (SAC, ¶

		31.) The DFEH issued a Notice of Right to Sue on that same date. (SAC, ¶ 32.) As to alleged wrongful acts by Defendants, the SAC alleges that on or about June 2019, Plaintiff was hired as a Coordinator of Special Education/Mental Health by SAUSD; that at all times, Plaintiff was under the supervision of Helguera; and that "[t]hroughout Plaintiff's employment, PLAINTIFF encountered from HELGUERA a continuing course of anonymous complaints, threatening statements which were severe or pervasive, creating a hostile or abusive work environment based on PLAINTIFF'S gender." (SAC, ¶¶ 12-13, 15.) It is alleged that in October 2019, Plaintiff reported Helguera's gender harassment and discriminatory behavior to SASSA; that on December 19, 2019, Plaintiff met with SAUSD Administrators to discuss Helguera's actions towards Plaintiff and shared Helguera's gender harassment and discriminatory behavior; that following this December 19, 2019 meeting, Helguera threatened Plaintiff and ostracized Plaintiff; that on February 28, 2020, Helguera called Plaintiff into a meeting and told Plaintiff that they were taking her name to the board as a recommendation for a non-reelect year and that Helguera would recommend that Plaintiff resign; that on March 2, 2020, Plaintiff was brought to Helguera's office where Helguera against stated that Plaintiff should resign as soon as possible; that on March 4, 2020, Plaintiff met with the Director of Human Resources and provided details regarding Plaintiff's concerns about being pressured to resign and the hostile work environment; and that on March 11, 2020, Plaintiff received correspondence from SAUSD confirming that she would not be rehired for the 2020-2021 school year, and informing Plaintiff that her last day of employment was scheduled for June 30, 2020. (SAC, ¶¶ 16-17, 19, 21-24.) The SAC alleges that on May 22, 2020, Plaintiff submitted a formal complaint to SAUSD Human Resources alleging gender harassment and toxic work environment, that on a date unknown in 2020-2021, SAUSD's risk management assigned Steve Blackwood to conduct an investigative interview relating ot the allegations against Helguera; that on or about June 2021, Plaintiff was interviewed by Blackwood regarding her allegations related to Helguera; that on October 4, 2021, SAUSD was reminded of outstanding issues related to Plaintiff's SAUSD employment; and that on November 9, 2021, Richard Valero, Alliance of Schools for Cooperative Insurance Program for SAUSD acknowledged the "Claim for Damages" that had been filed with the District citing November 2, 2021 as the date of incident, and "stated that SAUSD would be 'conducting an investigation into the facts and

		circumstances surrounding the claim.’ ” (SAC, ¶¶ 26-28, 30.) Here, based on the allegations in the SAC, and assuming their truth, conduct by Helguera constituting gender discrimination, harassment, and retaliation against Plaintiff occurred culminated on June 30, 2020, Plaintiff’s last day of employment. Plaintiff’s complaint filed on October 3, 2023 with the DFEH for discrimination based on gender harassment would not have been timely filed within three years from the date upon which the unlawful practice occurred, i.e., end of Plaintiff’s employment on June 30, 2020. The SAC does not allege facts supporting a continuing violation of discriminatory conduct based on gender or retaliation that is sufficiently similar in kind and that occurred with sufficient frequency within three years prior to October 3, 2023, nor does it appear that Plaintiff could do so as her last day of employment was June 30, 2020. The demurrer based on the failure to exhaust administrative remedies is SUSTAINED, without leave to amend. In light of the Court’s ruling, the Court need not address Defendants’ argument that the first cause of action fails to state facts sufficient to state a claim. <u>Motion to Strike Portions of Second Amended Complaint</u> Defendants move for an order striking claims for "substantial losses in past and future wages," "bonuses," and "employment benefits." (SAC ¶¶ 42, 55.) Contrary to what is stated in the notice of motion, Defendants do not move to strike punitive damages allegations, or other allegations beyond the scope of Plaintiffs’ FEHA Complaint. In light of the Court’s ruling on the demurrer as to the failure to exhaust administrative remedies, the motion to strike is MOOT. The Case Management Conference is continued to August 13, 2026 at 1:30 p.m. *Defendants to give notice.*
106	Potter vs. Brookdale Irvine, 22-01278030	Defendant, Brookdale Senior Living, Inc., moves for summary judgment, or in the alternative, summary adjudication of the four causes of action asserted in the operative Second Amended Complaint of Plaintiffs, Betty Gregory, in and through her Successor-In-Interest, Kimberly Potter and Kimberly Potter.

		"Notice of the motion and supporting papers shall be served on all other parties to the action at least 81 days before the time appointed for hearing. If the notice is served by mail, the required 81-day period of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days." (Code Civ. Proc., § 437c(a)(2).) On February 26, 2026, the Court granted Plaintiffs' counsel's motions to be relieved as counsel of record for Kimberly Potter, indicating that the "withdrawal is only effective upon the filing of a proof of service of this [signed] order on Plaintiff." (ROA 413.) The Court's file reflects that proof of service of the order granting the motion to be relieved as counsel of record was filed on April 6, 2026. (ROA 463, 465.) After the Court granted Plaintiff's counsel motion to be relived as counsel on February 2026, but before proof of service of the order granting the motion to be relieved as counsel of record was filed on April 6, 2026, Defendant, Brookdale Living filed and served the instant motion for summary judgment, or in the alternative, summary adjudication on March 25, 2026. The proofs of service attached to the moving papers indicate that the moving papers were served on Kimberly Potter on March 25, 2026, by electronic service only. California Rules of Court, rule 2.253(b)(2) provides that "[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6." Additionally, "[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise." (California Rules of Court, rule 2.253(b)(3).) "An unrepresented party may consent to receive electronic service." (Code Civ. Proc. §1010.6(c)(2).)

		Express consent to electronic service may be given by either (1) serving a notice on all parties and filing the notice with the court, or (2) "[m]anifesting affirmative consent through electronic means with the court or the court's electronic filing service provider, and concurrently providing the party's electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent." (Code Civ. Proc. §1010.6(c)(3)(i)-(ii).) California Rules of Court, rule 2.251(b) sets forth similar ways in which a party may agree to accept electronic service. Kimberly Potter is self-represented. It does not appear that Kimberly Potter has affirmatively agreed to accept service by electronic means. Nor has Kimberly Potter filed an opposition to the instant motion for summary judgment and/or summary adjudication. Under these circumstances, it does not appear that Defendant Brookdale Senior Living, Inc. properly served the moving papers on Kimberly Potter. Consequently, Brookdale Senior Living Inc.'s motion for summary judgment and/or summary adjudication is DENIED, without prejudice. *The Court orders clerk to give notice.*
107	Ariaga vs. City of Brea, 24-01403550	Defendant, City of Brea ("Brea"), moves for an order granting summary judgment in favor of Brea as to the Complaint of Plaintiff, Melva Ariaga ("Plaintiff"). This motion for summary judgment originally came on for hearing on May 29, 2025, and was continued for proper submission of evidence by Plaintiff. Plaintiff has since lodged the video referenced in the Declaration of Art Ariaga. Brea contends that it is entitled to summary judgment on two separate grounds, each of which is independently sufficient to merit summary judgment in favor of Brea. Brea contends that it is entitled to summary judgment on the ground that the defect alleged by Plaintiff was a trivial defect as the uplift in the sidewalk at issue measured less than one inch at all points, and there were no aggravating circumstances. Brea also contends that Plaintiff's claim would still fail as Plaintiff cannot establish that Brea had actual or constructive notice of the alleged defect. Brea additionally asserts that Brea cannot be held liable for Plaintiff's claims for general negligence and willful failure to warn under Civil Code section 846, as a matter of law.

		Plaintiff contends that tape measures do not dictate premises liability, and that the defect was not trivial due to aggravating conditions, such as a visual "camouflage effect" created by heavy tree shadows. Plaintiff also contends that there is a genuine dispute of material fact regarding the size of the defect, that Plaintiff's biomechanical expert establishes that the 1.25 inch uplift was significantly higher than Plaintiff's natural toe clearance making the probability of a trip occurring a near certainty, which was compounded by the "camouflage effect", and that Brea did not adhere to its own safety standards set forth in Municipal Code sections 12.08.010 and 12.20.080, and Standard Plan 103-0. Plaintiff additionally contends the triable issue of fact exist regarding Brea's constructive notice as Brea's claimed lack of notice of the defect is directly contradicted by historical evidence and Brea's own internal records. Lastly, Plaintiff provides that Plaintiff concedes that her common law general negligence claim and claims under Civil Code section 846 are precluded. *Plaintiff's Objections to Evidence* The Court SUSTAINS Objection Nos. 1 and 2 (to Declaration of Gerardo Mestas). The Court SUSTAINS Objection No. 3 (to Declaration of Mario Maldonado). *Brea's Objections to Evidence* The Court SUSTAINS Objection Nos. 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 11, 12, 13, 14. *Standard for Motion for Summary Judgment and Allegations in Complaint* "A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding." (Code Civ. Proc. § 437c(a)(1).) A defendant moving for summary judgment or summary adjudication has met his or her burden of showing that a cause of action has no merit if he or she shows one or more elements of the cause of action cannot be established, or that there is a complete defense to that cause of action. (Code Civ. Proc. § 437c(p)(2).) Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to that cause of action or a defense. (Ibid.) A plaintiff must set forth specific facts showing that a triable issue of material fact exists as to a cause of action or a defense thereto. (Ibid.)

		A cause of action has no merit if either (1) one or more of the elements of the cause of action cannot be separately established, even if that element is separately pleaded; or (2) a defendant establishes an affirmative defense to that cause of action. (Code Civ. Proc. § 437c(o).) "A summary judgment may be granted only where it is shown that the entire 'action' 'has no merit.' [Citation.]" (*Hypertouch, Inc. v. ValueClick, Inc*. (2011) 192 Cal.App.4th 805, 834.) " '[F]rom commencement to conclusion, the party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law.' [Citation.] '[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.' [Citation.]" (*Nicoletti v. Kest* (2023) 97 Cal.App.5th 140, 143–144.) There is a three-step analysis for the court to determine a summary judgment motion. (*Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 939-940.) "First, we identify the issues raised by the pleadings. Second, we determine whether the movant established entitlement to summary judgment, that is, whether the movant showed the opponent could not prevail on any theory raised by the pleadings. Third, if the movant has met its burden, we consider whether the opposition raised triable issues of fact." (*Ibid*.) "[A] motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law." (Code Civ. Proc. § 437c(c).) The court first reviews the complaint because the pleadings define the issues addressed in a summary judgment motion. (*Scott Co. v. United States Fidelity & Guaranty Ins. Co.* (2003) 107 Cal.App.4th 197, 213 *disapproved of on other grounds in Le Francois v. Goel* (2005) 35 Cal.4th 1094, 1101.) Here, the first cause of action for premises liability alleges that on June 18, 2023, Plaintiff was injured while walking on the sidewalk at or near 274 W. Ash St. in the

		City of Brea, California 92821 (the "Subject Sidewalk"), as Plaintiff "unexpectedly tripped on a raised portion of uneven surface of the sidewalk, amounting to a dangerous condition that [Brea] knew or should have known existed when providing ordinary care in maintaining or using the property, causing her to fall and land or her left hip, causing her to suffer substantial injuries, ..." (Brea's Compendium of Evidence ("Brea's COE"), Ex. 1, Declaration of Justin Spearman, Ex. 2, "Amended Complaint" ("Complaint"), at p. 4, Prem. L-1.) The first cause of action for premises liability asserts "Count One—Negligence", "Count Two—Willful Failure to Warn [Civil Code section 846], and "Count Three—Dangerous Condition of Public Property." (Complaint, at p. 4, Prem. L-2, Prem. L-3, Prem. L-4.) The second cause of action for general negligence is based on the same allegations. (Complaint, at p. 5.) In opposition, Plaintiff concedes that "Defendant correctly notes that public entity liability for premises defects is governed exclusively by Government Code § 835, precluding common law general negligence and claims under Civil Code § 846." (Opposition, 6:24-27.) Therefore, the only claim remaining is Plaintiff's first cause of action for premises liability for dangerous condition of public property. Government Code section 835 ". . . 'expressly authorizes two different forms of dangerous conditions liability: an act or omission by a government actor that created the dangerous condition (§ 835, subd. (a)); or, alternatively, failure "to protect against" dangerous conditions of which the entity had notice (id., subd. (b)).' [Citation.]" (Kabat v. Department of Transportation (2024) 107 Cal. App. 5th 651, 660.) "The phrase 'protect against' includes 'warning of a dangerous condition.' § 830, subd. (b).)" (Ibid.) "To establish liability under section 835, a plaintiff must show: '(1) "that the property was in a dangerous condition at the time of the injury"; (2) "that the injury was proximately caused by the dangerous condition"; (3) "that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred"; and (4) either (a) that a public employee negligently or wrongfully "created the dangerous condition" or (b) that "[the] public entity had actual or constructive notice of the dangerous condition a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." ' [Citation.]" (*Tansavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 653.)

		"A ' "[d]angerous condition" means a condition of property that creates a substantial . . . risk of injury when such property . . . is used with due care in a manner in which it is reasonably foreseeable that it will be used.' [Citation.] The plaintiff is required to establish only 'that the condition . . . creates substantial risk of harm when used with due care by the public generally . . . .' [Citation.]" (*County of San Diego v. Superior Court* (2015) 242 Cal.App.4th 460, 467.) *Trivial Defect* "It is well-settled that landowners are 'not liable for damages caused by a minor, trivial or insignificant defect in property.' [Citation.] In the context of sidewalk defect cases, landowners 'do[] not have a duty to protect pedestrians from every sidewalk defect that might pose a tripping hazard—only those defect that create a substantial risk of injury to a pedestrian using reasonable care.' [Citations.]" (*Miller v. Pacific Gas and Electric Company* (2023) 97 Cal.App.5th 1161, 1166 ("Miller").) The trivial defect doctrine is not an affirmative defense but an aspect of duty that a plaintiff must plead and prove, and it applies where liability is alleged against both governmental entities and private landowners. (*Ibid*.) Government Code section 830.2 states: "A condition is not a dangerous condition within the meaning of this chapter if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property or adjacent property was used with due care in a manner in which it was reasonably foreseeable that it would be used." (Gov. Code, § 830.2.) A condition is "not dangerous" if "the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines as a matter of law that the risk created by the condition was of such a minor, trivial or insignificant nature in view of the surrounding circumstances that no reasonable person would conclude that the condition created a substantial risk of injury when such property . . . was used with due care . . .' in a reasonably foreseeable manner. [Citation.]" (*Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1103-1104 ("*Huckey*").) The trial court may determine whether a given walkway defect was trivial as a matter of law in appropriate cases. (*Huckey, supra*, 37 Cal.App.5th at p.

		1104.) Where reasonable minds can reach only one conclusion, that there was no substantial risk of injury, the issue is question of law. (*Ibid*.) "If, however, the court determines that sufficient evidence has been presented so that reasonable minds may differ as to whether the defect presents a substantial risk of injury, the court may not conclude that the defect is trivial as a matter of law. [Citation.]" (*Id*. at pp. 1104-1105.) "The court's analysis of whether a walkway defect is trivial involves as a matter of law two essential steps. 'First, the court reviews the evidence regarding type and size of defect. If that preliminary analysis reveals a trivial defect, the court considers evidence of any additional factors [bearing on whether the defect presented a substantial risk of injury]. If these additional factors do not indicate the defect was sufficiently dangerous to a reasonably careful person, the court should deem the defect trivial as a matter of law . . . .' [Citation.]" (*Huckey, supra*, 37 Cal.App.5th at p. 1105.) "California does not classify defects as trivial or substantial according to a tape measure test—the mere depth or height of the defect in comparison to the rest of the sidewalk. Instead, courts look to the totality of the circumstances which include: (1) the physical characteristics of the defect (i.e., size, jagged edges, broken pieces, exposed rebar), (2) the setting (lighting, weather, other factors affecting visibility), and (3) history (plaintiff's familiarity with the area, any previous injuries attributable to the defect) . . . " (*Lechler v. City of San Francisco* (1998) 65 Cal.App.4th 523.) To establish a dangerous condition, a plaintiff must allege and prove at least one physical characteristic of the property that is defective and foreseeably endangers users of the property. (*Bonanno v. Central Contra Costa Transit Authority* (2003) 30 Cal.4th 139, 148-151.) "Whether a particular sidewalk defect is trivial and nonactionable may be resolved as a matter of law using a two-step analysis. [Citation.]" (*Miller, supra*, 97 Cal.App.5th at p. 1167.) "First, we review the evidence of the size and nature of the defect." (*Ibid*.) "If that analysis supports a finding of a trivial defect based on its physical characteristics, we then consider whether the defect was likely to pose a significant risk of injury because there was evidence that the conditions of the walkway surrounding the defect or the circumstances of the accident 'ma[de] the defect more dangerous than its size alone would suggest.' " (*Ibid*.) "If the evidence of additional factors does not indicate the defect was sufficiently dangerous to a reasonably careful person, we deem the defect trivial as matter of law." (*Ibid*.)

		The Court of Appeal in *Miller* (First District, Division 3) noted that one Court of Appeal in *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102 (Fifth District) "recently rejected this two-step analysis and used 'a holistic multi-factor framework for assessing triviality' as a matter of law, holding that 'the size of the defect is but one of the many circumstances to be considered; however, size remains the 'most important' of the dangerous condition factors.'" (*Miller, supra* 97 Cal.App.5th at p. 1167.) The Fifth District in *Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102 acknowledged that *Huckey v. City of Temecula* (2019) 37 Cal.App.5th 1092, 1107 held that "[s]idewalk elevations ranging from three-quarters of an inch to one and one-half inches have generally been held trivial as a matter of law" and that *Stathoulis v. City of Montebello* (2008) 164 Cal.App.4th 559, 567 noted that "[s]everal decisions have found height differentials of up to one and one-half inches trivial as a matter of law." (*Stack v. City of Lemoore* (2023) 91 Cal.App.5th 102, 113.) The court in City of Lemoore stated, however, that "[t]his dictum in *Huckey* and *Stathoulis* exaggerates the generally accepted size range of defects deemed trivial" and "[t]he more accurate encapsulation is that 'when the size of the depression begins to stretch beyond one inch the courts have been reluctant to find that the defect is not dangerous as a matter of law,' i.e., that it is minor or trivial." (*Ibid*.) Under either analysis, the height of the uplift in the Subject Sidewalk was a trivial defect as a matter of law. Here, it is undisputed that Plaintiff alleges that on June 18, 2023, at approximately 11:30 a.m., Plaintiff was walking on the Subject Sidewalk in Brea when she tripped and fell over a raised portion of the Subject Sidewalk; that the Subject Sidewalk is owned and maintained by Brea; and that Brea is a public entity. (Plaintiff's Separate Statement of Undisputed and Disputed Material Facts ("PSS"), Nos. 1-3.) Nor does Plaintiff dispute that there were no broken pieces or jagged pieces of sidewalk at or around the uplift of the Subject Sidewalk. (PSS, No. 5.) Brea submits evidence to support the fact that that uplift in the Subject Sidewalk measured less than one inch in height. (PSS, No. 4, Brea's COE, Ex. 3, Plaintiff's Deposition, 42:8-43:9; Brea's COE, Ex. 6, Declaration of Gerardo Mestas ("Mestas Decl."), ¶¶ 2-5, Ex. 1.) More specifically, Brea provides evidence from Gerardo Mestas, a Public Works Supervisor for Brea who inspected the

		Subject Sidewalk on June 20, 2023, after Brea received a claim regarding Plaintiff's fall, who provides that the uplift of the Subject Sidewalk measures approximately ½ of an inch to ¾ of an inch, with the highest height of the uplift of the Subject Sidewalk being approximately ¾ of an inch. (Brea's COE, Ex. 6, Mestas Decl., ¶ 5.) Mestas also states that "[a]t no point was the uplift of the Subject Sidewalk an inch or more in raised elevation between the two adjoining slabs of sidewalk." (Ibid.) Plaintiff disputes this fact, asserting that the uplift measures approximately one and one-quarter inches. (PSS, No. 4.) However, the evidence cited does not support this assertion or a dispute as to Brea's evidence concerning the height of the uplift. Plaintiff cites to the Declaration of Jennifer Carter, and photographs attached thereto. The Declaration of Jennifer Carter, Plaintiff's "referring" counsel, does not state that the uplift measures approximately one and one-quarter inches. (See Plaintiff's Compendium of Evidence ("Plaintiff's COE"), Ex. 1, Declaration of Jennifer Carter.) While Attorney Carter attaches photos taken on Attorney's Carter's visit of the scene of the incident on June 24, 2023, including photos where a tape measure was placed against the vertical displacement between the two concrete sidewalk slabs, these photos do not clearly establish that the uplift measures approximately one and one-quarter inches due to the angle of the photograph. (Id., ¶¶ 4-8, Exs. A and B.) Therefore, there is no evidence to support a dispute that the uplift in the Subject Sidewalk was one and one-quarter inches. In turn, Brea's asserted material fact that the uplift in the Subject Sidewalk measured less than one inch in height is undisputed. Plaintiff's argument that there were aggravating circumstances due to an adjacent tree that cast shadows on the Subject Sidewalk and obscured the uplift and/or made it more difficult to see the uplift, is not alleged in the Complaint. As a result, this issue is not properly before the Court and is not considered. On a motion for summary judgment, the pleadings define the issues. (*Metromedia, Inc. v. City of San Diego* (1980) 26 Cal.3d 848, 885, reversed on other grounds in *Metromedia, Inc. v. City of San Diego* (1981) 453 U.S. 490.) In the absence of some request for amendment, there is no occasion to inquire about possible issues not raised by the pleadings. (*Ibid*., internal citations and quotations omitted.) " ' "The burden of a defendant moving for summary judgment only requires that he or she negate plaintiff's theories of liability as alleged in the complaint. A 'moving

		party need not ". . . refute liability on some theoretical possibility not included in the pleadings." [Citation.]' . . . ' "[A] motion for summary judgment must be directed to issues raised by the pleadings. The [papers] filed in response to a defendant's motion for summary judgment may not create issues outside the pleadings and are not a substitute for an amendment to the pleadings." ' " [Citation.]' [Citation.]" (*Lockhart v. County of Los Angeles* (2007) 155 Cal.App.4th 289, 304.) "Summary judgment cannot be denied on a ground not raised by the pleadings. [Citations.]" (*Bostrom v. County of San Bernardino* (1995) 35 Cal.App.4th 1654, 1663.) Without a request for amendment, the court need not inquire about possible issues not raised by the pleadings. (Id. at p. 1664.) "Declarations in opposition to a motion for summary judgment 'are no substitute for amended pleadings.' [Citation.]" (*Ibid*.) No request for amendment has been made, and the Court does not consider evidence as to the existence of aggravating factors, including the Declarations of Art Ariaga and Melissa Ariaga, and Declaration of Mark J. Burns, P.E., J.D. (Plaintiff's COE, Exs. 2-4), as to shadows obscuring the alleged defect, for the purposes of evaluating the trivial defect doctrine. In addressing the allegations in the Amended Complaint, the evidence before the Court demonstrates that the uplift in the Subject Sidewalk was no more than one inch. Based on the foregoing, the Court GRANTS Brea's motion for summary judgment. Plaintiff also argues that Brea did not adhere to its own safety standards set forth in Municipal Code sections 12.08.010 and 12.20.080, and Standard Plan 103-0, but adherence to safety standards is not pertinent to determine whether the alleged defect is trivial. Plaintiff additionally provides that on June 21, 2023, Brea dispatched a crew to the site to repair the subject defect, and the Brea's internal Work Order (#28993) confirms that the crew ground down the defect and explicitly noted the repair was done to "MAKE AREA SAFE," but a repair done after Plaintiff's incident is not relevant to determine whether the subject defect was trivial before Plaintiff's incident. "The fact that action was taken after an injury occurred to protect against a condition of public property is not evidence that the public property was in a dangerous condition at the time of the injury." (Govt. Code § 830.5(b).)

		In light of the Court's ruling above, the Court declines to address Brea's separate argument that Plaintiff cannot establish that Brea had actual or constructive notice of the alleged defect. Brea to prepare and submit proposed judgment. *Brea to give notice.*
108	Hernandez vs. Evergreen Royalle, 24-01417052	Defendants Evergreen Royalle, Ltd., and Jose Toro seek an order sustaining their demurrer to the 1st, 8th, 9th, 11th, and 13th causes of action of Plaintiff's Complaint based on failure to state sufficient facts to constitute a cause of action. Initially, a Request for Dismissal was filed on 5/18/2026 as to the 8th and 9th causes of action. As such, the demurrer to those causes of action is moot and will not be addressed. *MEET AND CONFER* These motions were originally on calendar for 6/4/2026. On that date, the motions were continued for counsel to engage in a good faith meet and confer as required by code. On 6/11/2026 Defense Counsel, Ross Spector filed a supplemental declaration indicating that Plaintiff's counsel had not responded to his email addressing the Court's order. (Supp. Decl. of Sepctor¶¶5,6.) Also, on 6/11/2026 the Clerk gave notice of its 6/4/2026 order. As Plaintiff's counsel is now in violation of this Court's order, the Court would be justified to refer the matter to the State Bar but instead exercises its discretion and offers grace and declines to so refer Attorney Ilan N. Rosen Janfaza (State Bar No. 298078). As to the Merits of the Motion(s), the Court rules as follows: *First Cause of Action for Battery* The elements of civil battery are: (1) Defendant intentionally performed an act that resulted in a harmful or offensive contact with the Plaintiff's person; (2) Plaintiff did not consent to the contact; and (3) the harmful or offensive contact caused injury, damage, loss or harm to Plaintiff. (*Brown v. Ransweiler* (2009) 171 Cal.App.4th 516, 526–527.) While it is true that "battery generally is not limited to direct body-to-body contact" and may be shown where one "throws a substance, such as water, upon the

		other...” (*Mount Vernon Fire Ins. Co. v. Busby* (2013) 219 Cal.App.4th 876, 881), it remains the case that “[b]attery is an intentional tort.” (*Piedra v. Dugan* (2004) 123 Cal.App.4th 1483, 1498). Here, the Complaint alleges that Defendants caused Plaintiff to be touched by bed bugs, mold, rats, and other uninhabitable conditions. (Complaint¶52.) Notably, the Complaint does not allege Defendants placed the bedbugs, rats, or mold into Plaintiffs’ room, with the intent that they be injured. Instead, Plaintiffs rely solely on Defendants’ alleged failure to take affirmative action to prevent Plaintiffs from being injured by the above, which does not suffice. Plaintiffs cite no binding authority which supports the existence of a battery claim in this scenario, and no such California authority could be located. At best, Plaintiffs cite *Mathias v. Accor Economy Lodging, Inc.* (7th Cir. 2003) 347 F.3d 672, nonbinding federal authority issuing from the 7th Circuit; however, this authority is non-availing to Plaintiffs. Although Mathias was a bed bug case, it was a negligence action and a post-judgment appeal of a punitive damages award, and therefore not informative on the issue of whether a battery cause of action is properly pled. Indeed battery was not litigated in that case. Ultimately, as the Complaint does not allege any affirmative conduct by Defendants, which resulted in an offensive touching of Plaintiffs and, as the authority cited by Plaintiffs does not support their theory of liability, the Demurrer to this claim is SUSTAINED. Additionally, leave to amend, as to the First Cause of Action, is DENIED. “[T]he burden is on the Plaintiff to show the manner in which she may amend, and how the amendment will change the legal effect of the pleading.” (*Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349). Additionally, a court should sustain a demurrer without leave to amend where there is no “reasonable possibility that the defect can be cured by amendment.” (*Chiatello v. City and County of San Francisco* (2010) 189 Cal.App.4th 472, 480-481). Similarly, leave to amend should be denied where the facts are not in dispute and the nature of the claim is clear, but no liability exists under substantive law. (*Lawrence v. Bank of Am*. (1985) 163 Cal.App.3d 431, 436).

		Here, Plaintiffs have not shown any ability to amend to allege a claim and, as indicated above, the claim is not supported by California authority. *Eleventh cause of action for Breach of Contract* "A cause of action for breach of contract requires pleading of a contract, plaintiff's performance or excuse for failure to perform, defendant's breach and damage to plaintiff resulting therefrom." (*McKell v. Washington Mut., Inc.* (2006) 142 Cal.App.4th 1457, 1489.) The "failure to attach or to set out verbatim the terms of the contract [is] not fatal to [a] breach of contract cause of action." (*Miles v. Deutsche Bank Nat'l Trust Co*. (2015) 236 Cal.App.4th 394, 402.) Rather, " 'a plaintiff may plead the legal effect of the contract rather than its precise language.' " (*Ibid., citing Construction Protective Services, Inc. v. TIG Specialty Ins. Co*. (2002) 29 Cal.4th 189, 199.) Plaintiff alleges that he entered into a written contract and/or rental agreement for the lease of Plaintiff's Apartment Unit at Subject Apartments complex. (Complaint ¶167.) He further alleges that he made "payment of the lease price for the Plaintiff's unit in the apartment." (Id. ¶168.) Finally, he alleges Defendants "breached the contract by failing to provide Plaintiff a habitable unit for lodging, as evident by the presence of infestations of bed bugs, mold, rats, and other uninhabitable conditions in Plaintiff's unit in the apartment." (Id. ¶170.) Plaintiff has alleged the existence of a written contract and the failure to attach a copy or set forth the terms verbatim is not fatal. He has alleged the legal effect of that contract and facts showing breach. Thus, the Demurrer to the eleventh cause of action is OVERRULED. *Thirteenth cause of action for Public Nuisance* "A public nuisance is one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal." (Civ. Code, § 3480.) A private plaintiff may bring a cause of action for public nuisance if the nuisance is "specially injurious" to the plaintiff. (Civ. Code, § 3493.) Here, Plaintiff pleads:

		"182. The above-mentioned unhabitable, unhealthy, and unsanitary conditions the community at large as these types of infestations easily spread (1) from one apartment unit to another through wall voids, plumping and electrical outlets, light switches, any cracks or voids present, etc.; (2) through personal property of those occupying the units and/or apartments, including Plaintiff's furniture, bedding, clothing/apparel, shoes, and other personal belongings and tangible personal property that were exposed above-mentioned infestations and other uninhabitable and untenantable conditions, all of which can easily cause the spread of the infestation into the community and into another individuals' residence thereby creating a risk of said infestations to other individuals' homes; and (3) spread above-mentioned infestations and uninhabitable conditions from the home to the public which can affect the community at large." [Complaint ¶182.] The above suggests that the mold/rat/bed bugs issue "could" affect the community at large, not that it did. There are no facts to suggest the issues existed in any other apartment but Plaintiff's. As such, demurrer is SUSTAINED with 20 days leave to amend. As to the Motion to Strike, Defendant Evergreen Royalle, Ltd., and Jose Toro seek an order striking the following language from the Plaintiff's Complaint: "1. Subsection (4) of paragraph 61 [See Complaint, p. 13, lines 11-15], which states: (4) failed to retain and delayed retaining of professional services to remedy and eliminate the flood, including the poor weather proofing of the walls and ceiling; and professional abatement services to repair and remedy infestations of bed bugs, mold, rats, and other uninhabitable conditions, and other uninhabitable and untenantable conditions. [Flood language] "2. Paragraph 129. [See Complaint, p. 28, lines 5-10]. [Attorney's fees] "3. Paragraph 130. [See Complaint, p. 28, lines 11-13]. [Damages] "4. Paragraph 140. [See Complaint, p. 30, line 22 to p. 31, line 1]. [Punitive Damages] [sic]

		"6. Paragraph 11 in the Prayer for Relief. [See Complaint, p. 37, lines 10-11]. [statutory damages pursuant to Civil Code §1940.2] "7. Paragraph 13 in the Prayer for.] Relief. [See Complaint, p. 37, lines 13-15]. [Attorney's Fees and Costs.]" Defendants seek to strike irrelevant facts, attorney's fees and costs, damages in the UCL cause of action, punitive damages, and statutory damages. However, in the Opposition, Plaintiff only addresses the punitive damages. Plaintiff's failure to oppose the motion to strike may be treated as an implied concession to the merits of the same. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.) Additionally, the court may construe the absence of a memorandum as waiver of all grounds not supported. (CRC 3.1113(a).) As such, the motion is GRANTED as to all items above (except No. 4) without leave to amend. As to punitive damages, Civil Code section 3294 provides in part: "(a) In an action for the breach of an obligation not arising from contract, where it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice, the plaintiff, in addition to the actual damages, may recover damages for the sake of example and by way of punishing the defendant. "(b) An employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation."" The policy of the law is to construe the pleadings "liberally … with a view to substantial justice" (CCP § 452). Additionally, "[J]udges read allegations of a pleading subject to a motion to strike as a whole, all parts in their context, and assume their truth." [*Clauson v. Sup.Ct.*

		(Pedus Services, Inc.) (1998) 67 Cal.App.4th 1253, 1255.] In this instance, Plaintiff alleges on or about August 1, 2022, Plaintiff Hernandez moved into the apartment and discovered two rats in the apartment. He reported the rats to management and they brought rat traps. (Complaint ¶15, 16.) He alleges that mold and bed bugs were reported to Defendants. (See Complaint ¶16, 22.) However, Plaintiff pleads his "concerns were ignored." (Complaint ¶22.) Plaintiff also pleads that he reported the bed bugs and mold once more (Complaint ¶26) and management sent someone to inspect the mold, however, "The personnel did not remove the mold in the wall nor change the top of the carpet in the affected areas that became damp from the water leak." (Complaint ¶27.) As to the bed bugs, the apartment was treated for bed bugs on 8/8/2023. (Complaint ¶28.) Plaintiff moved out of the apartment on 8/19/2023. Here, the length of time between the complaints and management's response is unclear. However, it appears Plaintiff suffered from the bed bugs and mold for at least a year. And while the bed bugs could have been remediated, the mold issue was not. If true, this could warrant punitive damages. Therefore, the Motion to Strike is DENIED as Item 4 above. The Case Management Conference is continued to September 17, 2026 at 1:30 p.m. *Defendants to give notice*.
109	Ally Bank vs. Carmona 25-01531431	Plaintiff Ally Bank ("Plaintiff") applies to the Court for a writ of possession against defendant Alejandro S. Carmona ("Defendant") regarding the subject 2021 Ford F-250 motor vehicle, Vehicle Identification No. 1FT7W2BT4MED43449. Plaintiff has filed a proof of service showing that the Summons, Complaint, and Notice of Application for Writ of Possession and Hearing were served by substituted service on May 24, 2026 after personal service could not with reasonable diligence be effected. The documents were thereafter mailed on May 28, 2026 and service was not complete until June 8, 2026, which is insufficient notice for a hearing on June 25, 2026. In light of the above, the hearing on Plaintiff's Application for Writ of Possession is CONTINUED to July 23, 2026 at 1:30 p.m. Plaintiff is ORDERED to provide Defendant with sufficient notice of the continued hearing date and file a

		proof of service no later than nine court days before the continued hearing date. *Moving party to give notice.*